

		Accordingly, the demurrer is SUSTAINED.
		Wood & Delgado shall give notice.
3	Long vs. Glyder LLC	The court issues no tentative ruling for the motion by Glyder LLC and Stuart Solkow's motion to tax/strike costs. After the court entered judgment in this action on 4/23/26, Plaintiff Chen "Peter" Cheng Long filed a memorandum of costs on 05/14/26, seeking \$147,883.54 in costs. (ROA #1343). Defendants filed this motion to tax/strike costs on 05/29/26. (ROA # 1381). After Defendants filed this pending motion to tax/strike costs, on 9/15/26, Plaintiff and Judgment Creditor Long filed a notice of conditional settlement of the entire case. (ROA #1439). Plaintiff did not file an opposition to the motion to tax/strike costs. Given that the parties filed a notice of settlement after the pending motion to tax/strike costs, and given that Plaintiff did not file an opposition, the timing of the parties' conduct suggests to the court that the parties' settlement resolved the issue of Plaintiff's costs. The parties are ordered to appear at the hearing. The court will hear from the parties regarding the settlement and whether or not the issues in this motion have been resolved by settlement at the hearing.
4	Lam vs. Bui	Consistent with the Notice of Withdrawal filed on September 14, 2026 (ROA No. 139), the hearing on the Motion for Sanctions filed by Defendants Huong Bui and Yen Hai Bui on April 6, 2026 (ROA No. 81), is vacated. Motion to Deem Plaintiffs Vexatious The Motion to Deem Plaintiffs Vexatious, filed by Defendants Huong Bui and Yen Hai Bui on April 6, 2026 (ROA No. 79), is DENIED. The term "vexatious litigant" is defined within Code of Civil Procedure section 391, subdivision (b). While multiple avenues of obtaining the designation exist, it is undisputed that only three are potentially relevant within this action. Initially, as noted by Plaintiffs they do not qualify as "vexatious" pursuant to Code of Civil Procedure section 391, subdivision (b)(1), as they have not initiated at least five litigations <i>in pro per</i>. Defendants identify only <i>four</i> proceedings within the last seven years. (See Motion: 3:2-22; See also ¶23 of Huong Bui and Hai Yen Bui Declarations.) Additionally, Defendants neither address nor establish that the identified actions were "commenced, prosecuted, or maintained in propria persona," as required. (Code Civ. Proc., § 391, subd. (b)(1).)